

CV-25-009803 DOLZADELLI, CHELSEA vs SALAS, OSCAR – a) Defendants the Frontier, LLC and Oscar Salas Demurrer to Plaintiff’s First-Amended Complaint – SUSTAINED, in part, OVERRULED, in part, with leave to amend; b) Defendant the Frontier, LLC and Oscar Salas Motion to Strike Portions of Plaintiff’s First-Amended Complaint - DENIED.

County: stanislaus

Division: Civil Law and Motion

Department: 24

Hearing date: 2012-04-02

Motion: a) SUSTAINED, in part, OVERRULED, in part, with leave to amend. The Court has considered the moving, opposition, and reply papers. Defendants The Frontier, LLC and Oscar Salas demur to the First Cause of Action (Negligence), Second Cause of Action (Negligent Hiring, Supervision, or Retention), and Fourth Cause of Action (Premises Liability) of Plaintiff's First Amended Complaint. Defendants also assert uncertainty. First Cause of Action – Negligence The demurrer is OVERRULED. Liberally construed, the First Amended Complaint alleges Defendants' security personnel witnessed an escalating confrontation, had actual notice of a potential threat to Plaintiff, and failed to take reasonable measures to prevent the ensuing assault. Whether Defendants owed a duty to Plaintiff under the circumstances, whether the assault was foreseeable, and whether Defendants' alleged omissions were a substantial factor in causing Plaintiff's injuries present factual questions not appropriately resolved on demurrer. The First Amended Complaint sufficiently states a negligence claim at the pleading stage. Code of Civil Procedure § 430.10; Delgado v. Trax Bar & Grill (2005) 36 Cal. 4th 224; Morris v. De La Torre (2005) 36 Cal. 4th 260; Castellon v. U.S. Bancorp (2013) 220 Cal. App.4th 994; McIntyre v. The Colonies-Pacific, LLC, (2014) 228 Cal.App.4th 664. Second Cause of Action – Negligent Hiring, Supervision, or Retention The demurrer is SUSTAINED WITH LEAVE TO AMEND The First Amended Complaint does not allege sufficient facts showing that Defendants knew or should have known an employee was unfit or incompetent; nor does it allege facts supporting the essential elements of a negligent hiring, supervision, or retention claim. The allegations focus primarily on the employee's conduct during the incident itself rather than facts demonstrating negligent hiring, training, supervision, or retention. Plaintiff has not adequately pled this cause of action as currently framed. However, there is a reasonable possibility the defect may be cured by amendment. Delfino v. Agilent Techs., Inc. (2006) 145 Cal. App. 4th 790; Evan F. v. Hughson United Methodist Church (1992) 8 Cal. App. 4th 828. Fourth Cause of Action – Premises Liability The demurrer is OVERRULED. The First Amended Complaint alleges Defendants failed to maintain reasonably safe premises, failed to provide adequate security, and failed to take reasonable protective measures despite notice of a dangerous situation. The allegations are sufficient to plead a premises liability theory. Kesner v. Superior Court (2016) 1 Cal. 5th 1132. Defendants' arguments regarding foreseeability, causation, control, and the precise location of the assault raise issues more appropriately resolved through discovery and on a developed factual record. Uncertainty The demurrer on the ground of uncertainty is OVERRULED. The First Amended Complaint adequately apprises Defendants of the nature of the claims being asserted. Any lack of detail regarding the exact location of the incident or other factual particulars may be addressed through discovery. Demurrers for uncertainty are disfavored and are not warranted here. A.J. Fistes Corp. v. GDL Best Contractors, Inc. (2019) 38 Cal.App.5th 677; Code of Civil Procedure § 430.10. Disposition Demurrer to the First Cause of Action (Negligence): OVERRULED. Demurrer to the Second Cause of Action (Negligent Hiring, Supervision, or Retention): SUSTAINED WITH LEAVE TO AMEND Demurrer to the Fourth Cause of Action (Premises Liability): OVERRULED. Demurrer on grounds of uncertainty: OVERRULED. If plaintiff wishes to file a Second Amended Complaint, plaintiff must do so by no later than July 31, 2026. Plaintiff's Request for Judicial Notice is Granted in part and DENIED in part. Evidence Code section 452(d)(1). Granted as to the existence and procedural content of court records in CR-25-000614 and CR-25-000616 and as to the address of The Frontier Club but denied to the extent offered for the truth of factual allegations within criminal complaints/minutes. Defendant shall submit a Proposed Order by no later than July 17, 2026, that conforms to the Court's ruling. b) DENIED. The Court finds, in view of the allegations of the First Amended Complaint, of Defendant Murillo's awareness of the bottle throwing incident at Plaintiff, Murillo's status as a security guard for The Frontier, Defendants alleged duty to Plaintiff as an invitee, licensee or patron, as addressed in the related Demurrer, and Defendant Murillo's failure to call 911 or request another to do so in the face of the ongoing knife attack on Plaintiff, that the First Amended Complaint alleges facts that demonstrate conduct by Defendant Murillo that constitute malice, a conscious disregard of the safety of others, or that demonstrate "despicable conduct" (conduct that is so vile, base, contemptible, miserable, wretched, or loathsome that it would be looked down upon and despised by ordinary decent people), which are sufficient to support a claim for punitive damages. Civ. Code § 3294(c)(1) Code of Civil Procedure § 436; College Hospital Inc. v. Superior Court (1994), 8 Cal. 4th 704, as modified; King v. U.S. Bank Nat'l Ass'n (2020) 53 Cal. App. 5th 675, as modified on denial of reh'g (Aug. 24, 2020); Am. Airlines, Inc. v. Sheppard, Mullin, Richter & Hampton (2002) 96 Cal. App. 4th

1017. Additionally, the First Amended Complaint, based on allegations of Defendant Salas' knowledge of Defendant Murillo's unfitness to function as a security guard arising from the 31st October 2024 fight outside The Frontier in which Murillo was involved, and of The Frontier's general policy not to call 911 in the face of Murillo's continued employment by the Frontier as a security guard after the 31ST October 2024 incident and the incident at issue, are sufficient to support the conscious disregard of the rights or safety of others by Salas, and/or the ratification of Murillo's alleged wrongful conduct, in view of Salas' position as CEO possessing the required influence on corporate policy as would make the alleged conduct attributable to The Frontier. Civ. Code § 3294(b); White v. Ultramar, Inc. (1999) 21 Cal. 4th 563; Myers v. Trendwest Resorts, Inc. (2007)148 Cal. App. 4th 1403. These allegations are sufficient at the pleading stage to support a claim for punitive damages. Additionally, the portions of the First Amended Complaint that relate to descriptions of the location of the attack on Plaintiff as "adjacent to" the premises etc., are factually descriptive allegations and not conclusory allegations and are not subject to being stricken. Code of Civil Procedure section 430.30(a). Defendants' motion is accordingly DENIED. Defendant shall submit a Proposed Order by no later than July 17, 2026, that conforms to the Court's ruling. The following are the tentative rulings for cases calendared before Commissioner Jared D. Beeson in Department 19 located at the Turlock Division at 300 Starr Avenue, Turlock, CA: ***There are no tentative rulings in Department 19*** Administrative ADA Accommodations Locations and Contact Info Privacy Policy Attorney Resources Judicial Council Forms Court Calendars California Court Self-Help Center California Judicial Branch Public Resources Court Holidays Stanislaus County Employee Access Outlook Share Point Superior Court of California County of Stanislaus Judicial Branch of California Privacy Terms of Use © 2026

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a) SUSTAINED, in part, OVERRULED, in part, with leave to amend.

The Court has considered the moving, opposition, and reply papers.

Defendants The Frontier, LLC and Oscar Salas demur to the First Cause of Action (Negligence), Second Cause of Action (Negligent Hiring, Supervision, or Retention), and Fourth Cause of Action (Premises Liability) of Plaintiff's First Amended Complaint. Defendants also assert uncertainty.

First Cause of Action – Negligence

The demurrer is OVERRULED.

Liberally construed, the First Amended Complaint alleges Defendants' security personnel witnessed an escalating confrontation, had actual notice of a potential threat to Plaintiff, and failed to take reasonable measures to prevent the ensuing assault. Whether Defendants owed a duty to Plaintiff under the circumstances, whether the assault was foreseeable, and whether Defendants' alleged omissions were a substantial factor in causing Plaintiff's injuries present factual questions not appropriately resolved on demurrer. The First Amended Complaint sufficiently states a negligence claim at the pleading stage. Code of Civil Procedure § 430.10; Delgado v. Trax Bar & Grill (2005) 36 Cal. 4th 224; Morris v. De La Torre (2005) 36 Cal. 4th 260; Castellon v. U.S. Bancorp (2013) 220 Cal. App.4th 994; McIntyre v. The Colonies-Pacific, LLC, (2014) 228 Cal.App.4th 664.

Second Cause of Action – Negligent Hiring, Supervision, or Retention

The demurrer is SUSTAINED WITH LEAVE TO AMEND

The First Amended Complaint does not allege sufficient facts showing that Defendants knew or should have known an employee was unfit or incompetent; nor does it allege facts supporting the essential elements of a negligent hiring, supervision, or retention claim. The allegations focus primarily on the employee's conduct during the incident itself rather than facts demonstrating negligent hiring, training, supervision, or retention. Plaintiff has not adequately pled this cause of action as currently framed. However, there is a reasonable possibility the defect may be cured by amendment. *Delfino v. Agilent Techs., Inc.* (2006) 145 Cal. App. 4th 790; *Evan F. v. Hughson United Methodist Church* (1992) 8 Cal. App. 4th 828.

Fourth Cause of Action – Premises Liability

The demurrer is OVERRULED.

The First Amended Complaint alleges Defendants failed to maintain reasonably safe premises, failed to provide adequate security, and failed to take reasonable protective measures despite notice of a dangerous situation. The allegations are sufficient to plead a premises liability theory. *Kesner v. Superior Court* (2016) 1 Cal. 5th 1132. Defendants' arguments regarding foreseeability, causation, control, and the precise location of the assault raise issues more appropriately resolved through discovery and on a developed factual record

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Uncertainty

The demurrer on the ground of uncertainty is OVERRULED.

The First Amended Complaint adequately apprises Defendants of the nature of the claims being asserted. Any lack of detail regarding the exact location of the incident or other factual particulars may be addressed through discovery. Demurrers for uncertainty are disfavored and are not warranted here. *A.J. Fistes Corp. v. GDL Best Contractors, Inc.* (2019) 38 Cal.App.5th 677; Code of Civil Procedure § 430.10.

Disposition

Demurrer to the First Cause of Action (Negligence): OVERRULED.

Demurrer to the Second Cause of Action (Negligent Hiring, Supervision, or Retention): SUSTAINED WITH LEAVE TO AMEND

Demurrer to the Fourth Cause of Action (Premises Liability): OVERRULED.

Demurrer on grounds of uncertainty: OVERRULED.

If plaintiff wishes to file a Second Amended Complaint, plaintiff must do so by no later than July 31, 2026.

Plaintiff's Request for Judicial Notice is Granted in part and DENIED in part. Evidence Code section 452(d)(1). Granted as to the existence and procedural content of court records in CR-25-000614 and CR-25-000616 and as to the address of The Frontier Club but denied to the extent offered for the truth of factual allegations within criminal complaints/minutes.

Defendant shall submit a Proposed Order by no later than July 17, 2026, that conforms to the Court's ruling.

b) DENIED.

The Court finds, in view of the allegations of the First Amended Complaint, of Defendant Murillo's awareness of the bottle throwing incident at Plaintiff, Murillo's status as a security guard for The Frontier, Defendants alleged duty to Plaintiff as an invitee, licensee or patron, as addressed in the related Demurrer, and Defendant Murillo's failure to call 911 or request another to do so in the face of the ongoing knife attack on Plaintiff, that the First Amended Complaint alleges facts that demonstrate conduct by Defendant Murillo that constitute malice, a conscious disregard of the safety of others, or that demonstrate "despicable conduct" (conduct that is so vile, base, contemptible, miserable, wretched, or loathsome that it would be looked down upon and despised by ordinary decent people), which are sufficient to support a claim for punitive damages. Civ. Code § 3294(c)(1) Code of Civil Procedure § 436; *College Hospital Inc. v. Superior Court* (1994), 8 Cal. 4th 704, as modified; *King v. U.S. Bank Nat'l Ass'n* (2020) 53 Cal. App. 5th 675, as modified on denial of reh'g (Aug. 24, 2020); *Am. Airlines, Inc. v. Sheppard, Mullin, Richter & Hampton* (2002) 96 Cal. App. 4th 1017.

Additionally, the First Amended Complaint, based on allegations of Defendant Salas' knowledge of Defendant Murillo's unfitness to function as a security guard arising from the 31st October 2024 fight outside The Frontier in which Murillo was involved, and of The Frontier's general policy not to call 911 in the face of Murillo's continued employment by the Frontier as a security guard after the 31ST October 2024 incident and the incident at issue, are sufficient to support the conscious disregard of the rights or safety of others by Salas, and/or the ratification of Murillo's alleged wrongful conduct, in view of Salas' position as CEO possessing the required influence on corporate policy as would make the alleged conduct attributable to The Frontier. Civ. Code § 3294(b); *White v. Ultramar, Inc.* (1999) 21 Cal. 4th 563; *Myers v. Trendwest Resorts, Inc.* (2007)148 Cal. App. 4th 1403. These allegations are sufficient at the pleading stage to support a claim for punitive damages.

Additionally, the portions of the First Amended Complaint that relate to descriptions of the location of the attack on Plaintiff as "adjacent to" the premises etc., are factually descriptive allegations and not conclusory allegations and are not subject to being stricken. Code of Civil Procedure section 430.30(a).

Defendants' motion is accordingly DENIED.

Defendant shall submit a Proposed Order by no later than July 17, 2026, that conforms to the Court's ruling.

The following are the tentative rulings for cases calendared before Commissioner Jared D. Beeson in Department 19 located at the Turlock Division at 300 Starr Avenue, Turlock, CA:

There are no tentative rulings in Department 19

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